

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING RIGHT-OF-WAY LAWS FOR UTILITY LINES AND
5 FACILITIES TO INCLUDE BROADBAND LINES AND NATURAL GAS PIPELINES; AND AMENDING
6 SECTION 69-4-101, MCA."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

9

10 **Section 1.** Section 69-4-101, MCA, is amended to read:

11 **"69-4-101. Use of public right-of-way for utility lines and facilities.** A telegraph, telephone, electric
12 light, broadband, natural gas, or electric power line corporation or public body or any other person owning or
13 operating such a telegraph, telephone, electric light, broadband, or electric power line or natural gas pipeline is
14 ~~hereby~~ authorized to install its respective plants and appliances necessary for service and to supply and
15 distribute electricity and natural gas for lighting, heating, power, and other purposes and ~~to that end, to~~
16 construct ~~such the~~ telegraph, telephone, electric light, broadband, or electric power lines or natural gas
17 pipelines, from point to point, along and ~~upon on~~ any of the public roads, streets, and highways in the state; by
18 the erection of necessary fixtures, including posts, piers, and abutments necessary for the wires and pipelines.
19 ~~The same shall telegraph, telephone, electric light, broadband, or electric power lines or natural gas pipelines~~
20 must be so constructed so as not to incommode inconvenience or endanger the public in the use of ~~said the~~
21 roads, streets, or highways, and nothing ~~herein shall be so in this section may be~~ construed as to restrict the
22 powers of city or town councils."

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- END -